

January 20, 2006



U.S. Department
of Transportation

400 Seventh Street, S.W.
Washington, D.C. 20590

**Pipeline and
Hazardous Materials
Safety Administration**

DOT-SP 8760
(FOURTEENTH REVISION)

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: (See individual authorization letter)
2. PURPOSE AND LIMITATION:
 - a. This special permit authorizes the display of FLAMMABLE and TOXIC placards, showing the UN identification numbers 1993 and 2810, respectively, on Barton Solvents, Inc.'s cargo tank motor vehicle having six or more compartments, in which one or more of the compartments contain a Class 3 and/or Division 6.1 hazardous material. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
 - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR § 172.302(c), § 172.328(a), § 172.334(b), § 172.502, and § 172.504, except as specified herein.
5. BASIS: This special permit is based on the application of Barton Solvents, Inc., November 21, 2005 submitted in accordance with § 107.109.

6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Hazardous Material Description			
Proper Shipping Name	Hazard Class/ Division	Identification Number	Packing Group
Environmentally hazardous substance, liquid, n.o.s.	9	UN3082	III
Flammable liquids, n.o.s.*	3	UN1993	II or III
Toxic, liquids, organic n.o.s.*	6.1	UN2810	II or III

* See Appendix B for specific materials authorized to be shipped using these generic descriptions.

7. SAFETY CONTROL MEASURES: Prescribed packagings prescribed are Barton Solvents, Inc.'s compartmented cargo tanks, comprised of 6 to 12 compartments that are authorized by § 173.242.

8. SPECIAL PROVISIONS:

a. Both a FLAMMABLE and TOXIC placard with the UN identification numbers 1993 and 2810, respectively, may be displayed on both sides and both ends of the cargo tank if one or more of the compartments contain a Class 3 and/or Division 6.1 or a Class 9 hazardous material (no identification numbers need to be displayed if Class 9 materials are present).

b. The marking requirements of §§ 172.302(c), 172.328(a) and 172.334(b) are waived.

c. Shipping papers must contain the proper shipping name, hazard class, identification number specified in § 172.101 and RQ, when present, for each material being transported.

d. Shipping papers displaying 'DOT-E 8760' may continue to be used until October 1, 2007, provided the special permit remains valid.

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9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle.
10. MODAL REQUIREMENTS: A current copy of this special permit must be carried aboard each motor vehicle used to transport packages covered by this special permit.
11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:
- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
 - o Persons operating under the terms of this exemption must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
 - o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this special permit, including display of its number, when this special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'exemption' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this exemption are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials

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incident reports. In addition, the grantee(s) of this exemption must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this exemption.

Issued in Washington, D.C.:

A handwritten signature in blue ink, appearing to read "Robert A. McGuire".

for Robert A. McGuire
Associate Administrator for
Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: AM